

Art. 11 RPBA 2020 should not be narrowly interpreted in a way which unduly restricts the discretion of the board to remit a case enshrined in Art. 111(1) EPC, as this would be contrary to the spirit of the Convention, which, in case of conflict, takes precedence (see Art. 23 RPBA 2020).

In T 894/20 the board observed that inventive step was not among the reasons for the appealed decision. As the primary object of appeal proceedings was to review the decision under appeal, the board considered this, and the fact that the case had been taken considerably out of turn, meaning there were another 14 years of a potential 20-year patent term left to run, to be special reasons for remitting the case to the examining division.

In T 2017/16 the board remitted the case to the opposition division for consideration of the ground for opposition of lack of inventive step, even though this would inevitably lengthen the proceedings and cause the parties additional costs.

9.3.4 Financial situation of a party

In T 2092/18 the appellant (patent proprietor) requested that the case not be remitted to the opposition division for a discussion of novelty and inventive step since it would be a financial burden and unfair to him who was a private individual. The board held that special reasons under Art. 11 RPBA 2020 were immediately apparent in the case in hand as the contested decision had not dealt with the issues of novelty and inventive step. The board further agreed with the respondent (opponent) that showing particular concern for a party's financial situation would go against the principle of procedural equality of the parties to the proceedings. Such a consideration could not justify depriving the respondent of a two-instance procedure with respect to issues never considered by the opposition division.

9.3.5 Remittal following amendments to the claims

In some decisions, remittal was ordered due to substantial amendments to the claims that necessitated further substantive examination.

a) Ex parte cases

In T 278/17 the contested decision dealt only with the requirements of Art. 76(1) EPC; patentability had not been discussed. Since the request was considerably different from the requests considered in the contested decision, the board's judicial review could cover only Art. 123(2) and 76(1) EPC. There were therefore "special reasons" within the meaning of Art. 11 RPBA 2020 for a remittal to the department of first instance for further prosecution.

In T 1534/18, all the grounds for refusal in the contested decision had been overcome by suitable amendments in the set of claims submitted on appeal. As a result, the contested decision was no longer valid and had to be set aside. Since the facts of the case had become fundamentally different from those on which the examination division had based its decision, the board exercised its discretion under Art. 111(1) EPC to remit the case to

the department of first instance for further prosecution. "Special reasons" within the meaning of Art. 11 RPBA 2020 applied given the sheer amount of examination work required for the outstanding issues.

In T 1007/15, the amended claims overcame the objections under Art. 83 and 84 EPC on which the contested decision was based. However, the issues of novelty and inventive step had not been discussed in the first-instance examination proceedings, and so the board would have had to examine them for the first time. That would have gone far beyond the primary object of appeal proceedings, which, according to the boards' established case law and now also Art. 12(2) RPBA 2020, was to review the contested decision in a judicial manner. Moreover, the appellant had agreed to the board's remitting the case and withdrawn its request for oral proceedings in the event that it did so. Oral proceedings were therefore unnecessary.

In T 2453/16 the examining division had not assessed the inventive step of the subject-matter of the claims before the board, which differed significantly from the searched claims. The appellant's position was that the cited prior art and the state of the file allowed the board to continue with an assessment of novelty and inventive step. However, the board concluded that in order to decide on the questions of novelty and inventive step, it would have to consider those questions anew in proceedings forming both the first and last instance, thereby effectively replacing the examining division.

See also T 1278/18 (the amendments to the claims clearly overcame all outstanding objections without introducing new issues; the question of whether or not the claimed invention was inventive had not been addressed in the appealed decision); T 901/16 (claim 1 of the amended main request overcame the objections which had led to the refusal of the application but it might also be necessary to consider prior-art documents other than those mentioned in the decision); T 2670/18 (the appellant filed amendments to the claims which overcame the objection under Art. 84 EPC); T 1028/19 (the sole reason given by the examining division for refusing the set of claims of the main request was not applicable to the subject-matter of the new set of claims).

b) Inter partes cases

In T 1443/15 the decision under appeal was confined to an assessment of added subject-matter under Art. 100(c) and Art. 123(2) EPC. The set of claims of the main request before the board had overcome the related issues. Having regard to the board's function of reviewing the decision under appeal and given that two of the parties had explicitly requested remittal, the remaining party had not objected to remittal and the opposition division had not ruled on the issues of novelty, inventive step and sufficiency of disclosure, the board considered that there were special reasons for remitting the case to the opposition division for further prosecution.

In T 1174/15, the board held that remittal to the opposition division was justified as auxiliary requests 1-3 had not been dealt with in the contested decision or commented on by the opposition division. Moreover, the respondent had requested remittal and the appellant had withdrawn its request to the contrary.

In T.1174/18 the board remitted the case to the opposition division despite the parties' preference against remittal. The subject-matter of auxiliary request 7 had not been examined by the opposition division as to its patentability. In particular it was questionable whether document D3 was still the most relevant piece of prior art.

c) Discrepancies between the clean and the annotated versions of a request

In T.353/18, when admittance of objections to auxiliary request 3 under Art. 123(2) EPC was discussed at the oral proceedings before the board, there turned out to be a discrepancy between the wording of the claim in the clean and the annotated versions of that request. The respondent contended that the clean version was the valid one and that the discrepancy was due to an error when preparing the annotated version of auxiliary request 3. However, having relied on the correctness of the annotated version of auxiliary request 3, the appellant had not provided any written submissions on the specific wording of claim 1 of the clean version, in particular as far as Art. 123(2) EPC was concerned. A ruling on the valid (i.e. clean) version of auxiliary request 3 would therefore have required a substantive discussion for the first time during the oral proceedings before the board, without any prior exchange of arguments between the parties. Handling the case in this way would clearly have run counter to the primary object of the appeal proceedings, which was to review the decision under appeal in a judicial manner.

9.3.6 Incomplete search

a) Features considered non-technical

In T.547/14, no search had been carried out because the subject-matter of the application had not been considered technical, yet a conclusive examination was not possible without a search. Since the primary object of appeal proceedings was to review the decision of the department of first instance (Art. 12(2) RPBA 2020) but the invention had not yet been searched on the basis of the features since found to be technical, and novelty and inventive step had not been examined either, special reasons presented themselves in this case to remit the matter to the department of first instance for a search and further examination, as per the appellant's request.

In T.943/16 it was not clear whether the features considered non-technical by the examining division had been searched. Since the only document cited in the search report was less relevant than the prior art cited in the application, there was good reason to doubt that the search was complete. Under these circumstances, the board was not in a position to assess inventive step.

In T.1749/14 the board was not sure whether the features found in the contested decision to be non-technical or not to contribute to inventive step had been systematically searched, especially since the European search opinion was based on the approach taken in the contested decision. Only the examining division could therefore judge whether the supplementary European search had covered those features of the independent claims which the board considered to provide a technical contribution, or whether a further search was necessary.

b) Closest prior art not suitable or misinterpreted

In T 97/14 the appellant had consistently argued that, since the claimed invention related to web services, the closest prior art for the purpose of assessing inventive step should be in that field. Consequently, the documents cited in the supplementary European search report and during examination (D1 and D2), relating to remote procedure calls, were argued to be unsuitable as a starting point for inventive step. The board agreed with the appellant that the closest prior art should be in the field of web services. The board remitted the case for further prosecution because the search was not complete.

In T 565/17 the reasoning in the written decision was erroneous and the decision under appeal could not be upheld. The board was not convinced that inventive step could be denied on the basis of document D1 alone. Since the examining division had misinterpreted D1, there was a distinct possibility that the search into the state of the art had been stopped too early and was incomplete (see Guidelines for Examination, November 2019, B-IV, 2.6).

In T 2496/17 the board stated that document D4, which had been cited by the USPTO in the proceedings for the related US patent application, might be a better starting point for assessing inventive step than any of the documents cited in the European search report. Since inventive step over documents D1 to D4 had not yet been assessed, and since the search into the state of the art might not yet be complete, special reasons for remittal presented themselves.

c) Additional prior-art search necessary

The following cases were remitted to the department of first instance for an additional search.

In T 1159/15 the board, referring to the established case law, held that a prior-art search should have been carried out before refusing the application for lack of inventive step, since the claims contained at least one feature that was not notoriously well known. Since a prior-art search was deemed necessary and its outcome could not be anticipated in advance, the assessment of the claimed subject-matter with respect to inventive step (and the other requirements of the EPC) had to be carried out anew. This constituted, in essence, a fresh case going beyond the issues discussed in the decision under appeal.

In T 1877/19, amendments to the application documents meant that the subject-matter claimed was no longer based entirely on a combination of claims as originally filed. In view of this, the examining division's search might not have included one of the claimed features, so the board could not be sure that the relevant prior art had been identified for it.

In T 1928/14 no written prior art had been consulted during the first-instance proceedings. The board was not sure whether the publications cited as A documents in the international search report covered the aspects of the additional features of claim 1

according to the request in hand. The supplementary European search report merely contained a "no-search declaration".

See also T 1338/16 (the board was not in a position to decide whether the scope of the search carried out by the department of first instance had also covered the subject-matter of claim 1 according to auxiliary request 5); T 568/17 (the question arose as to whether the search was complete; this was a question that the board was not equipped to answer); T 1278/18 (the board stated that since the added feature had been taken from the description and drawings, an additional search for relevant prior art might be necessary); T 2573/17 (the claims had been amended considerably during the proceedings at first instance and the board had doubts as to whether the search was complete).

9.3.7 Opposition withdrawn

In T 1627/18 the opposition had been withdrawn and so the question arose as to whether the opposition proceedings should be continued pursuant to R. 84(2) EPC for assessment of the grounds of opposition under Art. 100(a) and 100(b) EPC, which were outstanding issues on which no decision had been taken. The board considered that the circumstances constituted special reasons for remitting the case to the opposition division, as requested by the appellant. After remittal, the opposition division would then have to exercise its discretion as to whether the opposition proceedings should be continued pursuant to R. 84(2) EPC. See also T 1223/15, T 1981/16 and T 430/17.

9.4. Remittal following fundamental deficiencies

9.4.1 Article 11 RPBA 2020

Art. 11 RPBA 2020 states that the board is not to remit a case to the department whose decision was appealed for further prosecution, unless special reasons present themselves for doing so. As a rule, fundamental deficiencies which are apparent in the proceedings before that department constitute such special reasons (see explanatory remarks on Art. 11 RPBA 2020, Supplementary publication 2, OJ 2020).

9.4.2 Article 11 RPBA 2007

Under Art. 11 RPBA 2007, a board was to remit a case to the department of first instance if fundamental deficiencies were apparent in the first-instance proceedings, unless special reasons presented themselves for doing otherwise. In other words, the rule was that a case was to be remitted if a fundamental procedural deficiency had been identified, but a board could exceptionally refrain from doing so if it found that there were special reasons not to. Fundamental deficiencies included a violation of the right to be heard, deficient reasoning for the decision, a breach of Art. 19(2) EPC, a lack of clarity as regards the parties' requests and a failure to hold oral proceedings.

If any special reasons were established, the boards were to refrain from remitting a case to the department of first instance even if there had been fundamental deficiencies in the proceedings before it. Special reasons identified by the boards against remitting the case